

Healthcare Power of Attorney of Berdia Monson Table of Contents

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Healthcare Power of Attorney of Berdia Monson

I, Berdia Monson, the principal, an adult of sound mind, freely and voluntarily execute this Healthcare Power of Attorney, with an understanding of its purposes and consequences. I intend to create a health care power of attorney under the laws of the State of Arkansas. I further intend that my statements in this document constitute clear and convincing evidence of my wishes concerning personal care, residential placement, and medical treatment (hereinafter, "healthcare").

Article One Recitals

Section 1.01 Designation of Healthcare Agent

I designate the individual named below to serve as my Healthcare Agent hereunder.

Name: Reneta Michelle Harper
Address: 3903 Adventure Drive, Pine Bluff, AR 71603
Phone: (870) 489-1378

If Reneta Michelle Harper is unwilling or unable to serve, then I designate the individual listed below as alternate Healthcare Agent.

Name: Kimberly Fox-Stepps
Address: 2802 Claremont Ave, Pine Bluff, AR 71601
Phone: (870) 329-7344

Section 1.02 Effectiveness, Duration, and Durability

My Healthcare Agent's authority hereunder is effective only if I am unable to make healthcare decisions on my own. A formal adjudication of my incapacity is not required for my Healthcare Agent to exercise the authority granted by me under this document.

This Healthcare Power of Attorney is not limited to a term of years and continues until I revoke it. The authority of my Healthcare Agent does not terminate if I become disabled or incapacitated.

Section 1.03 General Grant of Authority

My Healthcare Agent has authority to do all acts related to my healthcare that my Healthcare Agent determines to be appropriate, including, but not limited to, any acts specifically mentioned in this document. My Healthcare Agent knows my wishes

regarding artificial nutrition and hydration and so has authority to make decisions concerning that life sustaining treatment, including refusing the same.

Article Two

Health and Personal Powers

Section 2.01 General Instructions

I request that my Healthcare Agent discuss with me the specifics of any proposed action regarding my healthcare if I am able to communicate in any manner, however rudimentary, even by blinking my eyes. If my Healthcare Agent cannot determine the action I would take under the circumstances, then I request that my Healthcare Agent make the choice for me based upon what my Healthcare Agent believes to be in my best interests, taking into account—

- (i) the provisions of this document;
- (ii) any preferences that I may previously have expressed;
- (iii) what my Healthcare Agent believes I would want done under the circumstances; and
- (iv) any information from my treating physicians as to my medical diagnosis and prognosis, and the intrusiveness, pain, risks, and side effects of the treatment.

My purposes in leaving these instructions are to alleviate uncertainty that otherwise may arise in connection with decisions about my healthcare, to promote family harmony, and to clarify instructions to my healthcare providers. My Healthcare Agent's authority to act on my behalf concerning my healthcare includes, but is not limited to:

- (i) decisions concerning artificial life support, medical treatment, surgery, and other medical procedures;
- (ii) artificial nourishment and hydration;
- (iii) resuscitation decisions, including Do Not Resuscitate [DNR] orders and CPR directives;
- (iv) amputation of limbs;
- (v) blood transfusions;
- (vi) experimental drugs and medical procedures;
- (vii) the administration of pharmaceutical agents; and
- (viii) arrangements for long-term care.

I affirm my belief in the importance and value of my personal dignity, both in living and in dying.

Section 2.02 Residential or Hospice Care

My Healthcare Agent is authorized to admit me to, or remove me from, any residential home or hospice care facility. For the purposes of arranging for such care, my Healthcare Agent has the authority to facilitate my transportation to and establish my legal residence within or beyond the State of Arkansas.

Section 2.03 Maintain Me in My Residence

I prefer to remain in my personal residence as long as reasonably possible, and my Healthcare Agent may take any action to effectuate that desire, including obtaining 24-hour care and equipment that might assist in my care.

Section 2.04 Visitation

Wherever I am living or temporarily residing, I authorize my Healthcare Agent to visit me. Further, my Healthcare Agent may restrict or allow visitation from others as my Healthcare Agent determines appropriate.

Section 2.05 Medical Information and Medical Records

My Healthcare Agent may have access to all of my medical information and medical records from any of my healthcare providers. My Healthcare Agent may disclose information regarding my healthcare to whomever Healthcare Agent deems appropriate. My Healthcare Agent may admit or transfer me to any healthcare facility that Healthcare Agent determines to be in my best interests.

I request that my healthcare providers discuss my medical condition with my Healthcare Agent and release all medical records to my Healthcare Agent. Communications between my Healthcare Agent and my healthcare providers may be via traditional or electronic means.

Section 2.06 Employ and Discharge Healthcare Personnel

My Healthcare Agent may employ and discharge healthcare personnel as my Healthcare Agent determines necessary for my physical, mental, and emotional well-being.

Section 2.07 Pain Relief

I want to ensure that my Healthcare Agent and physician protect my comfort and freedom from pain as much as possible. I authorize my Healthcare Agent to consent to the administration of whatever pain-relieving drugs and surgical pain-relieving procedures my Healthcare Agent, upon medical advice, believes may provide comfort to me, even though such drugs or procedures may have adverse side effects or hasten my death. Even if artificial life support or aggressive medical treatment has been withdrawn or refused, I want to be kept as comfortable as possible, and I do not want to be neglected by medical or nursing staff.

Section 2.08 Consent to Psychiatric Treatment

My Healthcare Agent may—

- (i) upon the execution of a certificate by two independent psychiatrists who have examined me and in whose opinions I am in immediate need of hospitalization because of mental disorders, alcoholism, or drug abuse, arrange for my admission to an appropriate hospital or institution for treatment of the diagnosed problem or disorder;
- (ii) arrange for private psychiatric and psychological treatment for me; and
- (iii) revoke, modify, or withdraw consent to the hospitalization, institutionalization, or private treatment that I or my Healthcare Agent may have previously given.

The consent of my Healthcare Agent to my admission to any treatment facility for psychiatric help, alcoholism, or drug abuse has the same legal effect, subject to applicable local law, as a voluntary admission made by me.

Section 2.09 Grant Releases

In conjunction with any instructions given in this document, my Healthcare Agent may grant releases from all liability for damages suffered by me to administrative and healthcare workers who act in reliance on instructions given by my Healthcare Agent, or who render written opinions to my Healthcare Agent. My Healthcare Agent may refuse treatment and may remove me from the hospital against medical advice, and sign documents to that effect, as well as sign any necessary waivers of or releases from liability required by any hospital or physician to implement my wishes regarding medical treatment or non-treatment.

Section 2.10 Living Will

To the extent that any provisions of this Healthcare Power of Attorney are deemed to conflict with any Living Will that I have executed now or in the future, the provisions of my Living Will prevail.

If I become unconscious or incompetent in a jurisdiction where my Living Will or this Healthcare Power of Attorney is not honored, I authorize my Healthcare Agent to transport me, or arrange for my transportation, to a jurisdiction where my medical directives will be enforceable.

Article Three

Legal and Administrative Powers and Provisions

Section 3.01 Health Insurance Portability and Accountability Act

My Healthcare Agent may serve as my personal representative for all purposes of the Health Insurance Portability and Accountability Act of 1996 and its regulations

Healthcare Power of Attorney of Berdia Monson

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("HIPAA"). My Healthcare Agent may execute any authorization forms required to release my patient records and other medical information subject to and protected under HIPAA.

Section 3.02 Guardian

The authority conferred upon my Healthcare Agent obviates the need for appointment of a guardian of my person. However, should any proceeding be commenced for the appointment of a guardian, I nominate my Healthcare Agent to serve as the guardian of my person, without bond.

Section 3.03 Third-Party Reliance

Third parties may accept as binding the instructions of my Healthcare Agent regarding my healthcare. No person or medical facility or institution may incur any liability to me or to my estate by complying with my Healthcare Agent's instructions. My Healthcare Agent is authorized to execute consents, waivers, and releases of liability on my behalf and on behalf of my estate to all medical personnel who comply with my Healthcare Agent's instructions. Furthermore, I authorize my Healthcare Agent to indemnify and hold harmless, at my expense, any third party who accepts and acts under this Healthcare Power of Attorney, and I agree to be bound by any indemnity entered into by my Healthcare Agent.

Section 3.04 Enforcement by Healthcare Agent

I authorize my Healthcare Agent to seek on my behalf, and at my expense, any of the following:

- (i) a declaratory judgment from any court of competent jurisdiction interpreting the validity of this document or any of the acts authorized by this document (but a declaratory judgment is not necessary in order for my Healthcare Agent to perform any act authorized by this document);
- (ii) an injunction requiring compliance with my Healthcare Agent's instructions by any person providing healthcare to me; and
- (iii) actual and punitive damages against any person responsible for providing healthcare to me who willfully fails or refuses to follow my Healthcare Agent's instructions.

Section 3.05 Release of Healthcare Agent's Personal Liability

My Healthcare Agent will not incur any personal liability to me or my estate arising from the good faith exercise of discretion or performance of acts and duties relating to my healthcare.

Section 3.06 Reimbursement of Healthcare Agent

My Healthcare Agent is entitled to reimbursement for all reasonable expenses arising from the performance of acts and duties relating to my healthcare.

Section 3.07 Copies Effective as Originals

Copies of this document, including electronic copies, are as effective and enforceable as the original. Third parties may rely on copies for the full force and effect of all stated terms.

Section 3.08 Interstate Enforceability

I intend that the terms of this document be honored in any jurisdiction, regardless of its conformity to that jurisdiction's technical requirements and legal formalities.

Section 3.09 Amendment and Revocation

I reserve the right to amend or revoke my Healthcare Agent's authority orally or in writing.

Section 3.10 Conflicting Provisions

Unless otherwise expressly provided herein, the provisions of this Healthcare Power of Attorney supersede any conflicting provisions in any other document that I have previously executed.

Dated: August 14, 2023

Berdia Monson

Berdia Monson, Principal

STATE OF ARKANSAS)

COUNTY OF PULASKI)

On this day, August 14, 2023, before me personally appeared Berdia Monson, personally known to me (or proved to me on the basis of satisfactory evidence) to be the individual whose name is subscribed to the foregoing Healthcare Power of Attorney, and acknowledged that she executed the same as her voluntary act and deed for the purposes therein contained.

Witness my hand and official seal.

[Seal]



Ashley Stepps

Ashley Stepps, Notary Public

My commission expires October 6, 2030

Notary registration no.: 12378910

Healthcare Power of Attorney of Berdia Monson

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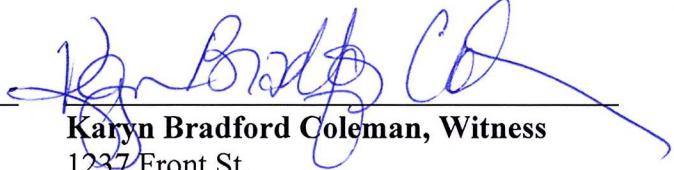
Witnesses Attestation and Declaration

STATE OF ARKANSAS)
COUNTY OF PULASKI)

We, Chantelle Cole and Karyn Bradford Coleman, having been sworn by the officer signing below, hereby declare to that officer on our oaths that the Principal declared this document to be her health care power of attorney and signed it in our presence, and that we each now sign the document as a witness in the presence of the Principal and of each other.



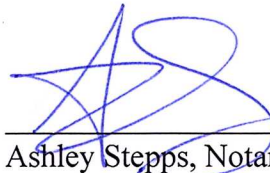
Chantelle Cole, Witness
1237 Front St.
Conway, Arkansas 72032



Karyn Bradford Coleman, Witness
1237 Front St.
Conway, Arkansas 72032

Subscribed and sworn to (or affirmed) before me on this 14th day of August, 2023, by Chantelle Cole and Karyn Bradford Coleman, proved to me on the basis of satisfactory evidence to be the persons who appeared before me.

[Seal]



Ashley Stepps, Notary Public
My commission expires October 6, 2030

Notary registration no.: 12378910

**Authorization for Release of
Protected Health Information**

of

Berdia Monson

(August 14, 2023)

ASHLEY STEPPS

Attorney at Law

RIPPY, STEPPS & ASSOCIATES

1237 FRONT STREET

CONWAY, ARKANSAS 72032

Phone: (501) 428-9139

Fax: (877) 415-3706

Email: ashley@rsalawgroup.com

www.rsalawgroup.com



RIPPY, STEPPS

& ASSOCIATES

ESTATE PLANNING AND ELDER LAW ATTORNEYS

HELPING YOU COMPLETE YOUR LEGACY

Authorization for Release of Protected Health Information of Berdia Monson

(Valid Authorization Under 45 CFR Chapter 164)

Statement of Intent: It is my understanding that Congress passed a law entitled the Health Insurance Portability and Accountability Act of 1996 (HIPAA) that limits use, disclosure, or release of my health information (or, sometimes herein, "protected medical information"). I am signing this Authorization because it is crucial that my health care providers readily use, release, or disclose my protected medical information to, or as directed by, that person or those persons designated in this Authorization to allow them to discuss with, and obtain advice from, others or to facilitate decisions regarding my health care when I otherwise may not be able to do so without regard to whether any health care provider has certified in writing that I am incompetent for purposes of A.C.A § 28-65-211.

A covered entity may not condition treatment, payment, enrollment, or eligibility for benefits on whether I provide the covered entity with this Authorization.

1. Appointment of Authorized Recipients

I, Berdia Monson (born May 1, 1937), hereby appoint the following persons, or either of them, as Authorized Recipients for health care disclosure under the Standards for Privacy of Individually Identifiable Health Care Information (45 CFR Parts 160 and 164) under HIPAA:

Reneta Michelle Harper

Kimberly Fox-Stepps

2. Grant of Authority

Therefore, I authorize a health care provider (a "covered entity" as defined by HIPAA) to use, release, and disclose my individually identifiable health information in accordance with and as authorized by 45 CFR Sections 164.502(a)(1)(i) and (iv), 164.502(a)(2)(i), 164.524 and 164.528.

I specifically authorize all covered persons and entities as defined in HIPAA, including, but not limited to, physicians, podiatrists, chiropractors, osteopaths, psychiatrists, psychologists, dentists, therapists, nurses, hospitals, clinics, pharmacies, laboratories, ambulance services, assisted living facilities, residential care facilities, bed and board facilities, nursing homes, medical insurance companies, and any other health care providers or affiliates to use, release, and disclose to an Authorized Recipient any of my protected medical information, including, but not limited to, reports and records concerning my

HIPAA Authorization of Berdia Monson

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medical and psychiatric history, condition, diagnosis, testing, prognosis, treatment, billing information, and identity of health care providers, whether past, present, or future, and any other information which is in any way related to my health care.

Additionally, this disclosure includes the ability to ask questions and discuss this protected medical information with the person or entity who has possession of the protected medical information even if I am fully competent to ask questions and discuss this matter at the time. It is my intention to give a full authorization for access to, disclosure, and release of ANY protected medical information by or to the persons named in this Authorization as if each person were me.

3. Termination

This Authorization is not affected by, and shall not terminate by reason of, my subsequent disability or incapacity. This Authorization shall terminate upon the earlier of 1 year following my death and the date my written revocation expressly referring to this Authorization is actually received by the covered entity. Proof of receipt of my written revocation may be by certified mail, registered mail, facsimile, or any other receipt evidencing actual receipt by the covered entity. Such revocation shall be effective upon the actual receipt of the notice by the covered entity except to the extent that the covered entity has taken action in reliance on it.

4. Redisclosure

By signing this Authorization, I acknowledge that the information used, disclosed, or released pursuant to this Authorization may be subject to redisclosure by an Authorized Recipient whose names are written in paragraph 1 of this Authorization and the information once disclosed will no longer be protected by the rules created in HIPAA. No covered entity may require an Authorized Recipient to indemnify the covered entity or agree to perform any act in order for the covered entity to comply with this Authorization.

5. Instructions to the Authorized Recipients

An Authorized Recipient has the right to bring a legal action in any applicable forum against any covered entity that refuses to recognize and accept this Authorization for the purposes that I have expressed. Additionally, an Authorized Recipient is authorized to sign any documents that the Authorized Recipient deems appropriate to obtain use, disclosure, or release of the protected medical information.

6. Effect of Duplicate Originals or Copies

If this Authorization has been executed in multiple counterparts, each counterpart original will have equal force and effect. An Authorized Recipient may make photocopies (including facsimiles, digital, and other reproductions) of this Authorization and each photocopy will have the same force and effect as the original.

7. My Waiver and Release

With regard to information disclosed pursuant to this Authorization, I waive any right of privacy that I may have under the authority of HIPAA or any similar state or federal act, rule, or regulation, including any amendments thereto. In addition, I hereby release any covered entity that acts in reliance on this Authorization from any liability that may accrue from the use or disclosure of my protected medical information in reliance upon this Authorization and for any actions taken by an Authorized Recipient.

8. Severability

I intend that this Authorization conform to United States and Arkansas law. In the event that any provision of this document is invalid, the remaining provisions shall nonetheless remain in full force and effect.

I understand that I have the right to receive a copy of this Authorization. I also understand that I have the right to revoke this Authorization and that any revocation of this Authorization must be in writing.

Dated: August 14, 2023


Berdia Monson, Principal

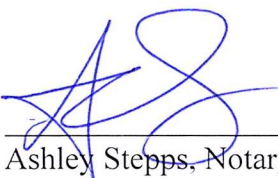
STATE OF ARKANSAS)
COUNTY OF PULASKI)

On this day, August 14, 2023, before me personally appeared Berdia Monson, personally known to me (or proved to me on the basis of satisfactory evidence) to be the individual whose name is subscribed to the foregoing HIPAA Authorization, and acknowledged that she executed the same as her voluntary act and deed for the purposes therein contained.

Witness my hand and official seal.

[Seal]




Ashley Stepps, Notary Public
My commission expires October 6, 2030
Notary registration no. 12378910

HIPAA Authorization of Berdia Monson

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Living Will
of
Berdia Monson

(August 14, 2023)

ASHLEY STEPPS
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1237 FRONT STREET
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HELPING YOU COMPLETE YOUR LEGACY

Living Will of Berdia Monson

I, Berdia Monson, of Sherrill, Arkansas, willfully and voluntarily declare and direct that if my death becomes imminent, I am in a permanent vegetative state, or I have a terminal illness or incurable condition, that my dying not be artificially prolonged under the guidelines described below.

Guidelines for the Cessation of Life-Prolonging Procedures

If at any time my medical condition becomes irreversible and terminal, I direct that all life-prolonging procedures be withheld or withdrawn. I also direct that life-prolonging procedures be withheld or withdrawn if I am in a permanent vegetative state, or have a terminal illness or an incurable condition, and am therefore unable to experience a meaningful life.

For this declaration to take effect, my attending physician must determine that there can be no recovery from my terminal condition or vegetative state, and that either my death is imminent or I can no longer experience a meaningful life. In addition, there must be a waiting period of 30 days after such determination before life-prolonging procedures may be withheld or withdrawn.

Life-prolonging procedures means those procedures that would only serve to artificially prolong the dying process, including, but not limited to, nutrition and hydration administered by invasive procedures; antibiotics; respirators, pacemakers, renal dialysis, or any other mechanical devices designed to assist the functioning of organs; transfusion of blood and blood products; and in the event of cardiac or cardiopulmonary arrest, resuscitative procedures.

Notwithstanding any other provisions of this Living Will, and without limiting those other provisions, if I suffer from a persistent vegetative state, I specifically refuse any treatment (including, but not limited to life-prolonging procedures) that is not directed at alleviating specifically, and with high probability of success, the underlying condition causing the persistent vegetative state.

I wish to die naturally, with only the administration of medication or the performance of any medical procedures deemed necessary to provide me with comfort and care or to alleviate pain, even though they may shorten my remaining life.

Statement of My Intent

In the absence of my ability to give directions regarding the use of such life-prolonging procedures, it is my intent that this declaration be honored by my family and physician as the final expression of my legal right to refuse medical or surgical treatment and to accept the consequences of such refusal.

This declaration is made after careful consideration and is in accordance with my strong convictions and beliefs. I want my wishes and directions as expressed in this declaration to be carried out to the extent permitted by law. Insofar as they are not legally enforceable, I hope that my family, my physician, the courts, and all others who may be involved in such decision-making will regard themselves as morally bound by this declaration.

Authorization of Surrogate

If I have named a surrogate for health care decisions, or appointed an agent pursuant to a power of attorney to make health care decisions for me, he or she may provide consent for withholding or withdrawing life-prolonging procedures according to my wishes.

Release of Liability

I hereby release and hold harmless any person who, in good faith, terminates life-prolonging procedures in accordance with the guidelines in this declaration.

I understand the full import of this declaration and I am emotionally and mentally competent to make this declaration.

Dated: August 14, 2023

Berdia Monson
Berdia Monson

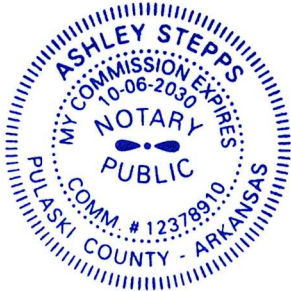
STATE OF ARKANSAS)
COUNTY OF PULASKI)

On this day, August 14, 2023, before me personally appeared Berdia Monson, personally known to me (or proved to me on the basis of satisfactory evidence) to be the individual

whose name is subscribed to the foregoing Living Will, and acknowledged that she executed the same as her voluntary act and deed for the purposes therein contained.

Witness my hand and official seal.

[Seal]



Ashley Stepps, Notary Public
My commission expires October 6, 2030
Notary registration no. 12378910

Declaration of Witnesses

We, the undersigned witnesses, declare that the foregoing instrument was signed by Berdia Monson in our presence. We further declare that we are not related to Berdia Monson by blood, marriage, or adoption, or an heir to her estate, or responsible for paying her health care costs. Berdia Monson is known to us, and we believe her to be of sound mind.

Chantelle Cole, Witness
1237 Front St.
Conway, Arkansas 72032

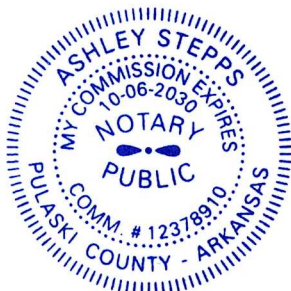
Karyn Bradford Coleman, Witness
1237 Front St.
Conway, Arkansas 72032

STATE OF ARKANSAS)
COUNTY OF PULASKI)

On this day, August 14, 2023, before me personally appeared Chantelle Cole and Karyn Bradford Coleman, personally known to me (or proved to me on the basis of satisfactory evidence) to be the individuals whose names are subscribed to the foregoing Living Will, and acknowledged that they executed the same as their voluntary act and deed for the purposes therein contained.

Witness my hand and official seal.

[Seal]



Ashley Stepps, Notary Public
My commission expires October 6, 2030
Notary registration no. 12378910

Living Will of Berdia Monson

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